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Attorneys for Defendants, Adam Brady and Emma Brady

ELECTRONICALLY
F I L E D
Superior Court of California, County of San Francisco
01/28/2026
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

JEREMY BERENS and
PATRICIA SZAFRANSKI-BERENS,

Plaintiffs,

vs.

ADAM BRADY; EMMA BRADY; and
DOES 1 to 30,

Defendants.
_____/

Case No. CGC-24-611337

DECLARATION OF SERVICE OF NOTICE OF *EX PARTE* APPEARANCE

Dept: 206
Date: January 29, 2026
Time: 11:00 a.m.

Joseph Wood declares:

1. I am the attorney for Adam Brady and Emma Brady, defendants in the above-named action ["the Bradys"]. The facts set forth below are within my personal knowledge and if called as a witness I would testify competently to those facts.

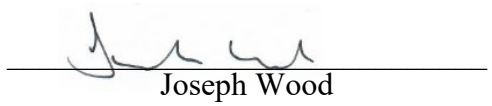
2. On January 27, 2026, I caused to be served on the parties to the above-named action notice that the Bradys, through their attorney of record, would appear *ex parte* in Department 206 of the above-named Court at 11:00 a.m. on Tuesday, January 29, 2026, and would then and there apply for an order continuing trial herein from 9:30 a.m. on April 6, 2026 to 9:30 a.m. on August 17, 2026, or as soon thereafter as the matter may be heard, and resetting all related pre-trial dates on the basis of, and with reference to, the new trial date.

3. Service was made by email transmission addressed as follows:

Tom H. Elke
Alexander Merchant
Elke & Merchant, LLP
Email address: alex@elkemerchant.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: January 27, 2026



Joseph Wood

PROOF OF SERVICE

Alexander Vaisman declares:

1. I am over twenty-one years of age and am not a party to the above-named action. My business address is 1 Sansome Street, Suite 1400, San Francisco, CA 94104.

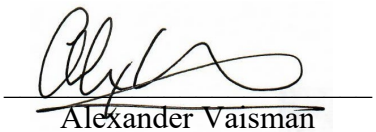
2. On January 27, 2026, in San Francisco, California, I served the attached **DECLARATION OF SERVICE OF NOTICE OF *EX PARTE* APPEARANCE** on the parties that have appeared in this action.

3. Service was made by email transmission as follows:

Tom H. Elke
Alexander Merchant
Elke & Merchant, LLP
Email address: alex@elkemerchant.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: January 27, 2026



Alexander Vaisman